

Legislative Powers

The President is an integral part of the Parliament of India, and enjoys the following legislative powers.

(a) He/she can summon or prorogue the Parliament and dissolve the Lok Sabha. He/she can also summon a joint sitting of both the Houses of Parliament, which is presided over by the Speaker of the Lok Sabha.

(b) He/she can address the Parliament at the commencement of the first session after each general election and the first session of each year.

(c) He/she can send messages to the Houses of Parliament, whether with respect to a bill pending in the Parliament or otherwise.

(d) He/she can appoint any member of the Lok Sabha to preside over its proceedings when the offices of both the Speaker and the Deputy Speaker fall vacant. Similarly, he/she can also appoint any member of the Rajya Sabha to preside over its proceedings when the offices of both the Chairman and the Deputy Chairman fall vacant.

(e) He/she nominates 12 members of the Rajya Sabha from amongst persons having special knowledge or practical experience in literature, science, art and social service.

(f) He/she nominated (before 2020) two members to the Lok Sabha from the Anglo-Indian community. However, the 104th Constitutional Amendment Act of 2019 has discontinued this provision.

(g) He/she decides on questions as to disqualifications of members of the Parliament, in consultation with the Election Commission.

(h) His/her prior recommendation or permission is needed to introduce certain types of bills in the Parliament. They are: (i) a bill involving expenditure from the Consolidated Fund of India, (ii) a bill for the alteration of boundaries of states or creation of a new state, (iii) a money bill, (iv) a bill that imposes or varies any tax or duty in which states are interested, (v) a bill which varies the meaning of the expression 'agricultural income' as defined for the purposes of the enactments relating to Indian income tax, (vi) a bill which affects the principles on which sums of money are or may be distributable to states and (vii) a bill that imposes any surcharge on any specified tax or duty for the purpose of the centre.

Further, a state bill imposing restrictions on the freedom of trade, commerce and intercourse with that state or within that state can be introduced in the legislature of the state only with the previous sanction of the President.

(i) When a bill is sent to the President after it has been passed by the Parliament, he/she can:

(i) give his/her assent to the bill, or

(ii) withhold his/her assent to the bill, or

(iii) return the bill (if it is not a money bill) for reconsideration of the Parliament.
However, if the bill is passed again by the Parliament, with or without amendments, the President has to give his/her assent to the bill.